

Your Digital Shadow

What your data is made of — and who should be able to see it, change it, and profit from it

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The shadow you cast

You cast a shadow now that you cannot see.

Every day you leave a trail — the things you search and read and buy, the messages you send, the routes you walk, the people you know, the hours you keep, the moods you let slip at one in the morning. Each trace is small. Gathered and kept, they form something larger: a detailed, searchable, predictive record of a single life. Yours. It is not you, but it could not exist without you, and it belongs to no one else the way it belongs to you. Call it your digital shadow.

For most of history a person's shadow was faint and forgettable; what you did on Tuesday was gone by Friday. What is new — what has changed everything in a single generation — is that the shadow is now permanent, copyable, and *computable*. It can be stored forever, combined with millions of others, and read by machines that find in it the patterns a human eye would miss: what you will want, what you will click, what you can be persuaded of, what you are worth. A shadow that can be read this well is a kind of power, and right now that power belongs almost entirely to whoever holds the data¹ — not to the person who cast it.

This essay is about taking the shadow seriously: what it is made of, and what rights a free person ought to have over each part of it. Because we have never really decided. We carry a second self around with us, growing sharper by the year, and we have almost no settled say over who may look at it, add to it, change it, keep it, or sell it.

Why “it’s mine” isn’t enough

The natural first answer is: it’s mine. My data, my shadow, my rights.

It is the right instinct, and it is too blunt to build on. Look closely and the shadow refuses to be a single thing you simply own. A private message has two authors, not one. The tie between two friends belongs to both of them. A great deal of the shadow you did not even make: it was *inferred* about you — guessed, scored, and filed by a company you never spoke to, from patterns you never saw. “Ownership” assumes a clean line between what is yours and what is not, and the shadow has no such line.

So it helps to stop asking *who owns the data* and start asking a sharper pair of questions: *which rights, over which kind of data, held by whom?*

Rights, because what we loosely call ownership is really a bundle of separate powers² — the way owning a house is really the bundled rights to enter it, change it, rent it, sell it, and keep others

out. For data, the bundle includes the right to **see** it, to **add** to it, to **correct** it, to **erase** it, to **hold** it (to keep the only copy), to **share** it onward, to **use** it (to compute on it, including to train an artificial intelligence), to **profit** from it, and to **carry** it away and leave. These can be held separately, and by different people.

And held by whom, because more than one party can have a real claim: **you**, who cast the shadow; the **others** who appear in it alongside you; the **network** that records and infers; and sometimes the **public**, when a thing is genuinely shared in common.

The work, then, is to walk the regions of the shadow and ask, for each, how that bundle should be divided.

The regions of the shadow

What you make. The clearest region, and the one with the strongest claim. The photographs you take, the words you write, the messages you compose, the things you create and post: these you authored, deliberately, and the whole bundle should default to you — see, correct, erase, carry, and profit, with use by anyone else only on terms you grant. This is the part of the shadow that feels most obviously like property, and the law half-agrees. It is also, increasingly, the smallest part.

What you do. Far larger is the exhaust of simply living online: what you click, how long you watch, what you scroll past, what you search, what you buy. You generate it without meaning to, as a byproduct of using a service, and that service has some honest claim to see it, because it cannot function otherwise. But the contested powers here are **use** and **profit**, and today the network quietly takes both: your behavior is studied and sold, and you see neither the study nor a cent of the sale. A fair settlement leaves you the right to see this record, correct it, erase it, carry it, *consent* to how it is used, above all whether it trains advertising or AI, and to share in the value it creates.

What you are, and where you are. A region apart, because of its sensitivity: your location over time, your face and your voice, your fingerprints and your heartbeat, your health. Much of this you did not author so much as emit, and to gather it is to follow a body through the world. It deserves the highest protection — collection minimized and opt-in rather than assumed, custody held by you by default, erasure easy and real, and a right the other regions barely require: the right *not to be measured at all*.

What's inferred about you. Here is where the power hides. From everything above, the network computes things you never told it: your likely politics, your vulnerabilities, your “type,” your predicted next move, a score that quietly decides what you are offered and at what price. You did not author this region, the network did, and yet it is entirely about you, and it is often the part that matters most to how you are treated. Today you usually cannot even **see** it. A free person should be able to see what has been inferred, **correct** what is wrong, **erase** it, and **consent** to whether such inferences may be drawn and used at all. The network made it; but you are its subject, and being its subject is itself a claim.

What's between you and another. Private messages, transactions, the mutual tie that says two people know each other: these have two rightful claimants, and neither owns them alone. You can delete your copy of a conversation, but whether you can erase it from the other person's record of it is a genuine question with no clean answer. This region cannot run on sole ownership; it needs *joint stewardship* — rules of consent worked out between the parties, the kind of thing a network's

members would have to agree among themselves rather than have imposed on them.

What others say about you. Finally, the things other people author *about* you: the photo they tagged, the review they left, the mention in someone else’s post. Two interests collide here — their freedom to speak, and your stake in your own reputation. You should be able to **see** what is said and to **respond**, but your right to **erase** another person’s speech is rightly narrow, reserved for harm rather than mere discomfort. This is the hardest boundary on the whole map, and the one most easily abused from either side.

Set side by side, the pattern becomes a table, and the table is the argument:

Region of your shadow	See	Add	Correct	Erase	Use / train AI	Profit
What you make	you	you	you	you	only by your grant	you
What you do	you + network	network records	you	you	opt-in only	shared with you
What you are / where you are	you	you	you	you (easily)	opt-in only	shared with you
What’s inferred about you	you (<i>today: hidden</i>)	network	you	you	by consent	shared with you
Between you and another	both	both	each their part	your own copy	by joint consent	shared
What others say about you	you + author	others	the author; you may reply	narrow — harm only	limited	—

Underneath every row sit two powers the table does not show, because they apply everywhere.

Custody, who physically holds the data, should default to you, hardest of all for the region of body and place; the network should keep only what it needs, in plain view, and let you withdraw it. And **portability**, the right to take any of this and leave, is the backstop that makes the rest real, because a right you cannot walk away with is a favor, not a right.

There is one more region, and it belongs to no one alone. When millions of shadows are pooled, the pool takes on properties no single shadow has — the shape of a whole population, and the intelligence that can be trained on it. This is *the shadow we cast together*, and it is where the value of modern artificial intelligence actually comes from. No individual rights table governs it, because it is a commons. The principle that should govern it is this movement’s whole reason for being: it ought to be stewarded in common, and its rewards ought to flow back to the people who cast it³ — not pool, as they do now, with the few who happened to hold the data.

The hard edges

None of this is tidy, and an honest map shows where it tears.

Relational data is the deepest problem⁴: when a thing belongs to two people, whose consent governs it? If you want a shared conversation erased and the other person wants it kept, someone’s right must yield, and no rule satisfies everyone. Inferred data raises a stranger question still: can a model truly *forget* what it learned about you, once your shadow has dissolved into its weights? Deletion there may be less like tearing up a file than like asking someone to unlearn a face. The line between your control and other people’s speech will be contested without end. And some of the shadow is genuinely public — said in the open, on the record — and cannot simply be reclaimed.

These are not reasons to abandon the framework. They are the framework's agenda: the questions a constitution for a user-owned internet would have to answer in the open, deliberately, rather than leave to whoever happens to write the terms of service. They are hard precisely because they matter.

What a shadow could do for you

It would be a thin victory to win all these rights and use the shadow only to defend yourself. The deeper promise is that a shadow you actually hold becomes something you can *use* — an asset, and an instrument of freedom.

Hold your own shadow and you can lend it on your terms: grant a company, or an AI you trust, the use of part of it for a season, and be paid for what is today simply taken. Carry it and you can leave — move to a better service without abandoning your history, your reputation, your connections, which is the lock that keeps people inside platforms they have long outgrown. Keep it close and you can train an intelligence on it that works for *you* — a model that knows your life and answers to you alone, rather than to the company that assembled the profile. And you can pool it on purpose: thousands of people choosing to combine their shadows into a common fund, a data union⁵, with the bargaining power, and the shared return, that no individual has alone.

A shadow you do not control is only a liability, a thing that can be used against you. A shadow you hold is a kind of capital, and a kind of liberty.

The first possession

A free people building a digital world of their own will have to decide many things. This is the first of them. Before the question of how the network is governed, or how its rewards are shared, or who is allowed to do what, comes the question of the self each person carries into it — the shadow they cast, and whether it is theirs.

The Declaration says that it is: that your data is the shadow of a real life, and belongs, first and last, to you. This is the argument beneath that line. The shadow has a shape; the shape has regions; each region carries rights that someone will hold whether we choose them or not. Choosing them — deliberately, in the open, for the person who casts the shadow rather than the company that captures it — is where a free internet begins.

SOURCES & NOTES

1. That this readable record is itself a form of power — behavioral data refined into predictions and sold — is the thesis of Shoshana Zuboff, *The Age of Surveillance Capitalism* (PublicAffairs, 2019). ↩
2. That ownership is not one thing but a *bundle* of separable rights is a classic move in legal philosophy; the standard enumeration of ownership's "incidents" is A.M. Honoré, "Ownership," in A.G. Guest, ed., *Oxford Essays in Jurisprudence* (Oxford University Press, 1961). ↩
3. Pooled data is a commons, and its value comes from wide use rather than hoarding, because data is *nonrival*: Charles I. Jones and Christopher Tonetti, "Nonrivalry and the Economics of Data," *American Economic Review* 110, no. 9 (2020). On governing such commons sustainably, Elinor Ostrom, *Governing the Commons* (Cambridge University Press, 1990). ↩
4. That data concerning more than one person resists a purely individual-ownership frame is the argument of Salomé Viljoen, "A Relational Theory of Data Governance," 131 *Yale Law Journal* 573 (2021). ↩
5. Pooling data for collective bargaining power, a "data union", grows out of the *data-as-labor* proposal in Eric A. Posner and E. Glen Weyl, *Radical Markets* (Princeton University Press, 2018), and Jaron Lanier's earlier *data dignity* (*Who Owns the Future?*, 2013). ↩